STUDENT RESEARCH / SUPREME COURT OF INDIA

SEPARATION OF POWERS ? 2021?2026

Who decides what?

A concise study of judicial restraint, institutional boundaries, and the balance of power in the Supreme Court of India.

19 case summaries

Prepared by Team Siddhi Shukla

Coverage period: 1 September 2021 to 31 August 2026

THE PROJECT

Institutions in balance. Power under review.

This report brings together a curated set of Supreme Court of India case summaries on separation of powers, judicial review, and the boundaries among legislative, executive, and judicial functions. Across the collection, the central question is how constitutional institutions exercise their authority while respecting the roles assigned to one another.

The cases touch on legislative choices and judicial restraint, executive discretion and constitutional accountability, federal relations, tribunal independence, election administration, and the review of public policy. Read together, they offer a compact view of recurring institutional questions across varied areas of law.

TEAM

Siddhi Shukla ? PNR 23010431053

Ananya Jayanti Singh ? PNR 23010421005

Kashvi Gupta ? PNR 23010421023

Jyotsana Singh ? PNR 23010421022

Prarthana Garg ? PNR 23010421036

HOW TO READ THIS COLLECTION

Each entry identifies the question before the Court and summarizes the outcome in plain language. The summaries are grouped as a reading list rather than a statistical account; the set is curated and is not intended to represent every Supreme Court judgment concerning separation of powers. State of Jharkhand v. Harihar Mishra is omitted from this collection.

CASE SUMMARIES

Questions and rulings

The 19 entries below follow the project case list.

01 Madras Bar Association v. Union of India

ISSUE

Whether the Tribunals Reforms Act, 2021 could re-enact provisions previously invalidated by the Court.

RULING

invalidated key restrictions and held that legislation cannot simply override a judgment without curing the constitutional defect.

02 Ashwini Kumar Upadhyay v. Union of India (hate speech)

ISSUE

Whether courts may create or expand criminal offences through directions where legislation does not do so.

RULING

declined the requested intervention, treating creation of criminal offences and punishments as a legislative function.

03 Supriyo @ Supriya Chakraborty v. Union of India

ISSUE

Whether the Court could extend marriage recognition under the Special Marriage Act to same-sex couples.

RULING

left creation of a new marriage or civil-union framework to legislative policy.

04 Ashwini Kumar Upadhyay v. Union of India (minimum age of marriage)

ISSUE

Whether the minimum age of marriage for women should be raised to 21 to match that for men.

RULING

declined to direct Parliament to establish a uniform minimum age.

05 Sanjay Prakash v. Union of India (CAPF, OGAS)

ISSUE

Whether executive service and promotion policies in the CAPFs complied with constitutional requirements.

RULING

used judicial review to address restrictions affecting service equality and highlighted limits on executive action.

06 Gujarat Urja Vikas Nigam Limited v. Amit Gupta

ISSUE

How the IBC tribunal's jurisdiction applies to disputes involving contracts and regulatory matters.

RULING

clarifying jurisdictional boundaries among tribunals, contracts, and courts.

07 In Re: Special Reference No. 1 of 2025 (Governors, Articles 200 and 201)

ISSUE

What limits govern a Governor's options when considering State bills.

RULING

described limits on gubernatorial inaction and addressed the relationship between executive and legislative roles.

08 Anoop Baranwal v. Union of India

ISSUE

How the Chief Election Commissioner and Election Commissioners should be appointed in the absence of legislation.

RULING

prescribed an interim appointment committee arrangement until Parliament enacted a law.

09 Animal Welfare Board of India v. Union of India (Jallikattu)

ISSUE

Whether State amendments permitting Jallikattu were valid after the Court's earlier decision.

RULING

upheld the amendments, treating them as changing the legal framework considered earlier.

10 Government of NCT of Delhi v. Union of India (Services)

ISSUE

Which government controls services in the National Capital Territory of Delhi.

RULING

recognized a significant role for Delhi's elected government in administration and discussed federal boundaries.

11 Association for Democratic Reforms v. Union of India (Electoral Bonds)

ISSUE

Whether the Electoral Bond Scheme and related amendments were constitutionally valid.

RULING

invalidated the scheme on rights grounds, while recognizing that legislation remains subject to judicial review.

12 Cox & Kings Ltd. v. SAP India Pvt. Ltd.

ISSUE

How the group-of-companies doctrine applies under Indian arbitration law.

RULING

addressed interpretation of corporate relationships while applying the governing statutory framework.

13 Subhash Desai v. Principal Secretary, Governor of Maharashtra

ISSUE

Whether the Governor could call for a trust vote based on internal party disputes and how the Speaker's role applied.

RULING

found the floor-test decision unlawful but declined to restore the former Chief Minister after his resignation.

14 Neil Aurelio Nunes v. Union of India (NEET OBC/EWS)

ISSUE

Whether the reservation policy for OBC and EWS candidates in NEET was subject to judicial intervention.

RULING

upheld the policy and described limits on judicial review of policy choices.

15 Pankaj Bansal v. Union of India

ISSUE

What safeguards apply to arrest powers exercised by enforcement authorities under the PMLA.

RULING

required written communication of the grounds of arrest as a check on executive power.

16 Central Electricity Regulatory Commission v. NTPC

ISSUE

How far courts may intervene in tariff decisions made by expert regulatory bodies.

RULING

emphasized deference to technical expertise and cautioned against courts setting tariffs.

17 S. G. Vombatkere v. Union of India (Sedition)

ISSUE

How Section 124A of the Indian Penal Code should be treated while its constitutionality was challenged.

RULING

stayed enforcement temporarily and asked the Union to reconsider the provision.

18 State of Punjab v. Principal Secretary to Governor

ISSUE

Whether the Governor could question the validity of an Assembly session when considering bills passed by it.

RULING

held that the Governor could not question the session's validity and stressed the functioning of the elected legislature.

19 In Re: Section 6A of the Citizenship Act

ISSUE

Whether Parliament had competence to enact Section 6A and whether the provision was constitutional.

RULING

upheld Section 6A and recognized Parliament's latitude in citizenship matters.